

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

08 CV 9448 (WHP)

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DENISE DOODNATH

Plaintiff,

AMENDED COMPLAINT

-against-

NEW YORK CITY, POLICE OFFICER KEITH DOUMAS
SHIELD # 21013, SGT RONALD MARTI SHIELD # 1975,
POLICE OFFICER RICHARD FRANGIPANE SHIELD # 12136,
DETECTIVE JOHN MALONEY SHIELD # 3915, POLICE OFFICER
DANIEL DEPIAZZA, POLICE OFFICER MICHAEL PRIOLEAU
SHIELD # 22903, LIEUTENANT ROBERT SEAMEN, INSPECTOR
PAUL PIEKARSKI and UNIDENTIFIED POLICE OFFICERS,

JURY TRIAL DEMANDED

Defendant(s).
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The plaintiff, complaining of the defendants, by her attorney, FRED LICHTMACHER,
ESQ., respectfully shows to this Court and alleges:

JURISDICTION

1 Jurisdiction is founded upon the existence of a Federal Question.

2 This is an action to redress the deprivation under color of statute, ordinance, regulation,
custom, or usage of rights, privileges, and immunities secured to plaintiff by the Fourth and
Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983.

3 Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343(3 & 4).

4 Venue is appropriate pursuant to 28 U.S.C. §§ 1391 (b) (1 & 2).

5 That this Court has jurisdiction to hear plaintiff's state claims pursuant to 28 U.S.C. § 1367.

PARTIES

6 That the plaintiff, DENISE DOODNATH, is a resident of the County of Queens in the City
and State of New York.

7 Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY
OF NEW YORK, (NYC) was and still is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York, and that at all times relevant defendants

POLICE OFFICER KEITH DOUMAS SHIELD # 21013, SGT RONALD MARTI SHIELD # 1975, POLICE OFFICER RICHARD FRANGIPANE SHIELD # 12136, DETECTIVE JOHN MALONEY SHIELD # 3915, POLICE OFFICER DANIEL DEPIAZZA, POLICE OFFICER MICHAEL PRIOLEAU SHIELD # 22903, LIEUTENANT ROBERT SEAMEN, INSPECTOR PAUL PIEKARSKI and UNIDENTIFIED POLICE OFFICERS were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

8 Upon information and belief, that at all times hereinafter mentioned, defendants were employed by the defendant, NYC, as members of its police department.

9 Upon information and belief, that at all times hereinafter mentioned, the defendant, NYC, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT (NYPD), including all the police officers thereof.

10 The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

11 This action arises under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, § 1983.

12 Each and all of the acts of the defendants alleged herein were done by the defendants, acting as state actors under the color of law.

STATEMENT OF FACTS

13 On October 18, 2007 at approximately 6:00 AM, plaintiff was in her home sleeping at 87-52 125th street in Richmond Hill, New York when the defendants illegally entered her apartment by knocking down her door.

14 The defendants proceeded to handcuff the plaintiff, who was partially nude, and forced her

to remain face down with inadequate clothing to cover her private parts, while one of the defendants unnecessarily pressed his knee into her back causing her pain and discomfort.

15 The police officers, without a legitimate law enforcement purpose or excuse, proceeded to not allow the plaintiff to retrieve and put on her clothing, as she had no clothing on the lower half of her body.

16 The officers stared at and demeaned the plaintiff while making her alternately stand and sit in her bedroom while gawking at her private parts for approximately forty five minutes.

17 Plaintiff's apartment is tiny and was thoroughly searched in less than five minutes, yet plaintiff was intentionally left partially nude for the entire approximately 45 minutes without any legal necessity to do so.

18 No contraband was found in plaintiff's home and she was not subsequently further held under arrest after the approximately forty five minutes.

19 The officers were all male and the plaintiff is female.

20 The defendants had no reason to enter plaintiff's home and if they had a warrant it was not obtained with accurate information nor was it shown to the plaintiff.

21 The plaintiff has never been involved in any criminal activity, she has no criminal history and there was no reason to break into and search her apartment and treat her as a criminal.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
BY AN UNREASONABLE ENTRY, SEARCH AND SEIZURE

22 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

23 That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that the plaintiff was subjected to an unreasonable entry, search and seizure.

24 That there was no legitimate reason for the defendants to obtain a warrant to enter

plaintiff's apartment.

25 That there was no legitimate reason for a no knock warrant.

26 That the search and the entry into plaintiff's apartment was conducted unreasonably.

27 That there was no legal justification for leaving the plaintiff in handcuffs and without adequate clothing, well after the defendants were certain she had no weapons or contraband and well after the defendants knew that neither she, nor anyone else in her small apartment, posed a threat to the defendants, to themselves or to others.

28 That the plaintiff was intentionally made to remain only partially clad for the defendants' perverse sexual gratification and amusement.

29 That the plaintiff was treated in a disparate and worse manner than a Caucasian person would have been treated because the plaintiff is a woman and because she is a woman of color and that due to plaintiff's race and gender the defendants paid no attention to her constitutional right to not be subjected to the humiliating, degrading and embarrassing aforementioned treatment.

30 That by reason of the unlawful entry, search and seizure the plaintiff was subjected to, great indignities, embarrassment, humiliation, anxiety, her personal relationship with her boyfriend was disrupted and that she was subjected to numerous other harms.

31 That all the defendants who knew of the violations of plaintiff's rights and who had a reasonable opportunity to either prevent it from commencing, stop it from continuing or to stop it from being conducted in an unreasonable manner are liable to the plaintiff via their failure to exercise their affirmative duty to intervene.

32 That defendants Unidentified New York City Police Officers who are supervisors within the defendant NYC's Police Department, who knew of violations of plaintiff's rights and who continued to allow and/or participate in the violation of the plaintiff's rights and who either directly participated in the violation of plaintiffs' rights or who after learning of the violation failed to remedy the wrong are liable to the plaintiff for the violation of her rights pursuant to the Fourth Amendment.

33 That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS, she is entitled to an award of punitive damages and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
VIA EXCESSIVE AND UNREASONABLE FORCE

34 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

35 That the defendant officer who unnecessarily pressed his knee into plaintiff's back causing her pain and discomfort used excessive and unreasonable force in that no force was needed to restrain the plaintiff, much less the excessive force employed.

36 That the defendant officers who were present and failed to intervene to prevent such force from being used and from it continuing to be used are liable to the plaintiff via their failure to act pursuant to the affirmative duty to intervene.

37 That by reason of the use of excessive force, the plaintiff was subjected to great indignities, humiliation, anxiety, embarrassment, fear, she was prevented from conducting her normal affairs of business, her personal life was interfered with and she was subjected to numerous other harms.

38 That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS, she is entitled to an award of punitive damages and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
FALSE ARREST

39 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

40 That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was subjected to a false arrest by the defendants.

41 That the defendants confined the plaintiff, in that plaintiff was not free to leave, defendants intended to confine plaintiff, plaintiff was conscious of confinement, plaintiff did not consent to confinement and confinement was not otherwise privileged.

42 That even had the initial entry into plaintiff's home and her initial confinement been legally justifiable, plaintiff's subsequent confinement after the not more than five minutes it took to determine her home was free of contraband and that no one in the tiny apartment was a threat to the safety of the officers, themselves or others, made the remainder of her confinement unjustifiable.

43 As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly plaintiff's right to be free from arrest without probable cause.

44 That the said false arrest was caused by the defendants, without any legal justification, without authority of the law and without any reasonable cause or belief that the plaintiff was in fact guilty of crimes and without any other legal justification.

45 That various defendants who knew of the false arrest and allowed the illegal detention of the plaintiff to continue, are liable to the plaintiff via their failure to act pursuant to their affirmative duty to intervene.

46 That defendants who are supervisors within the NYPD who knew of the false arrest and continued to allow and/or participate and/or cause the arrest of the plaintiff and who either directly participated in the violation of plaintiff's rights or who after learning of the violation failed to remedy the wrong are liable to the plaintiff for the violation of her rights pursuant to the Fourth Amendment and via the principle of supervisor liability.

47 That by reason of the unlawful false arrest, the plaintiff was subjected to pecuniary harms,

great indignities, humiliation, anxiety, embarrassment, she was prevented from conducting her normal affairs of business, her personal life was interfered with and she was subjected to numerous other harms.

48 That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS, she is entitled to an award of punitive damages and attorneys' fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR AN FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
NEW YORK STATE LAW VIA
FALSE ARREST (FALSE IMPRISONMENT)

49 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

50 That the defendant NYC is vicariously liable to the plaintiff for the individual defendants' common law torts via the principle of *respondeat superior*.

51 That New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

52 That on or about January 8, 2008, a notice of claim was served on the Comptroller of the City of New York on behalf of plaintiff, and that as of this date plaintiff's demand for payment has not yet been addressed by the defendants and no 50-H hearing has yet been conducted.

53 That more than thirty days have elapsed since the service of the aforementioned notice of claim for the plaintiff and that adjustment or payment thereof has been neglected or refused.

54 That the state claim in this cause of action is commenced within one year and ninety days of when this cause of action arose as to plaintiff and that the federal claims are brought in a timely manner within three years of the date they accrued.

55 That the plaintiff's rights have been violated pursuant to the common law of the State of New York via false arrest (false imprisonment), in that plaintiff was subject to a false arrest by the defendants.

56 That the defendants confined the plaintiff, in that plaintiff was not free to leave, defendants intended to confine plaintiff, plaintiff was conscious of confinement, plaintiff did not consent to confinement and confinement was not otherwise privileged.

57 That even had the initial entry into plaintiff's home and her initial confinement been legally justifiable, plaintiff's subsequent confinement after the not more than five minutes it took to determine her home was free of contraband and that no one in the apartment was a threat to the safety of the officers, themselves or others made the remainder of her confinement unjustifiable pursuant to the law of the State of New York.

58 As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the common law of the State of New York being more particularly plaintiff's right to be free from arrest without probable cause.

59 That the said false arrest was caused by the defendants, without any legal justification, without authority of the law and without any reasonable cause or belief that the plaintiff was in fact guilty of crimes and without any other legal justification.

60 That by reason of the unlawful false arrest, the plaintiff was subjected to great indignities, humiliation, embarrassment, anxiety, she was prevented from conducting her normal affairs of business and she was subjected to numerous other harms.

61 That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS
BY THE CITY OF NEW YORK,
i.e., MONELL CLAIM

62 Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

63 That the plaintiff's rights have been violated under the Fourth Amendment to the United States Constitution as made applicable to the states via the Fourteenth Amendment by the

defendant, NYC.

64 Defendants NYC as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by matters overtly similar to the instant matter, in spite of repeated complaints of similar behavior, and that there has been no meaningful attempt on the part of NYC to investigate or forestall further incidents.

65 That the defendant NYC intentionally operates an ineffective Civilian Complaint Review Board, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

66 That the defendant NYC intentionally operates an ineffective Internal Affairs Department of the City's police department, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

67 That as a result of NYC's deliberate indifference to the ineffectiveness of the CCRB and IAB, the defendants in the instant case felt free to, and did in fact, violate the plaintiff's rights.

68 That it is the routine practice of NYPD officers to maliciously fail to provide adequate clothing to nude or partially clad people who are being detained.

69 That despite being often alerted to the recurring problem of its officers intentionally failing to provide adequate clothing to persons being detained, the NYPD has remained deliberately indifferent to said problem and in so doing encouraged its officers to persist in this illegal, unconstitutional behavior.

70 That by reason of the aforementioned violations of plaintiff's constitutional rights, the plaintiff was subjected to great indignities, humiliation, embarrassment, anxiety, she was prevented from conducting her normal affairs of business and she was subjected to numerous other harms.

71 That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed SIX HUNDRED THOUSAND (\$600,000.00) DOLLARS, and that an award of attorneys' fees is

appropriate pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff demands judgment against the defendants in a sum not to exceed FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS and punitive damages on the First Cause of Action; in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS and punitive damages on the Second Cause of Action; in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS on the Third Cause of Action, in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS on the Fourth Cause of Action, and in a sum not exceed SIX HUNDRED THOUSAND (\$600,000.00) DOLLARS on the Fifth Cause of Action along with reasonable attorneys' fees pursuant to 42 U.S.C. § 1988 on plaintiff's federal causes of action together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: April 6, 2009
New York, New York

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